

TENTATIVE RULING FOR APRIL 27, 2026

Department R12 - Judge Kory Mathewson

Huang v. Shih, et al. – CIVSB2324483

Motion: Motion for Summary Judgment /Summary Adjudication

Movant: Defendants Richard J. Shih and Richard J. Shih, D.D.S., Inc.

Respondent: Plaintiff, (No Opposition)

RULING: Motion for Summary Judgment is GRANTED.

Defendants - to provide Order(s) and give Notice.

On December 9, 2025, Defendants filed the instant Motion for Summary Judgment, or in the Alternative, Summary Adjudication of Issues (Motion), supported by a Separate Statement of Undisputed Material Facts, a Compendium of Exhibits and a declaration from Melissa E. Fischer. No opposition has been filed at this time. On April 16, 2026, Defendants filed a Reply to Plaintiff's Non-Opposition.

ANALYSIS

The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 201 Cal.App.4th 826, 850.) The opposing party's failure to file counter-declarations does not relieve the moving party of the above burden: "There is no obligation on the opposing party ... to establish anything by affidavit unless and until the moving party has by affidavit stated facts establishing every element ... necessary to sustain a judgment in his favor." (*Consumer Cause, Inc. v. SmileCare* (2001) 91 Cal.App.4th 454,468.)

The opposing party's failure to file a separate statement of disputed facts constitutes "a sufficient ground, in the court's discretion, for granting the motion." (Code Civil Proc., § 437c, subd. (b)(3); *Oldcastle Precast, Inc. v. Lumbermens Mut. Cas. Co.* (2009) 170 Cal.App.4th 554, 568; *Kojanabian v. Genuine Home Loans, Inc.* (2009) 174 Cal.App.4th 408, 418; *Batarse v. Service Employees Int'l Union Local 1000* (2012) 209 Cal.App.4th 820, 831-833.) However, in exercising this discretion, the court must first determine whether the moving papers establish grounds for granting summary judgment or summary adjudication. (Code Civ. Proc., § 437c, subd. (b)(3).) The court may not grant the motion unless it first determines that the moving party has met its initial burden of proof. (*Thatcher v. Lucky Stores, Inc.* (2000) 79 Cal.App.4th 1081, 1085-1086; *Teselle v. McLoughlin* (2009) 173 Cal.App.4th 156, 160.)

The fact no opposition has been filed does not relieve the judge from the duty to draw all inferences reasonably deducible from the evidence before the court. (*Maxwell v. Colburn* (1980) 105 Cal.App.3d 180, 185.) If defendants fail to meet the burden, their motion must be denied; plaintiff need not make any showing at all. (*Consumer Cause, Inc. v. SmileCare, supra*, 91 Cal.App.4th at p. 468.)

Defendants' Undisputed Material Facts

In support of their Motion, Defendants submit five undisputed material facts (UMFs). Plaintiff filed her Complaint on September 28, 2023, against the Defendants alleging one cause of action for dental malpractice. (UMF #1). Plaintiff claims that, after the initial consultation,

Defendants recommended “a ceramic patch” and other dental procedures. Those procedures were performed in July 2021. Thereafter, plaintiff had continued pain in her mouth. She claims that Shih failed to perform the dental procedures within the standard of care. As a result, she claims that she has lost earnings, and that subsequent medical/dental treatment has been necessitated. (UMF #2).

On July 22, 2025, Defendants’ Motion for Terminating Sanctions against Plaintiff or, alternatively, request for issue sanctions and evidence sanctions as well as, monetary sanctions against Plaintiff and Plaintiff’s counsel, was heard. (UMF #4). At that time, the Court adopted its tentative ruling and ruled as follows, 1. Defendants RICHARD J. SHIH, D.D.S. and RICHARD J. SHIH, D.D.S., INC.’s Motion for Issue, Evidence and Monetary Sanctions is hereby GRANTED; 2. Plaintiff is hereby PRECLUDED from presenting any argument or evidence for personal injuries in this action including medical records; 3. Plaintiff is hereby PRECLUDED from presenting any argument or evidence for loss of wages or loss of earning in this action; and Plaintiff and Plaintiff’s counsel, Sergio A. Castaneda, Esq. and Edward C. Yim, Esq. with CASTANEDA LAW, jointly and severally, are further ORDERED to pay monetary sanctions in the amount of \$1,485.00 by way of check to BEHAR | GIBBS | SAVAGE | PAULSON LLP within 30 days of July 22, 2025. (UMF #5).

Cause of Action for Professional Negligence

Defendants primary argument is that Defendants have met their burden of showing that Plaintiff’s claim has no merit as there is no evidence of Plaintiff’s injuries, losses or damages. It is an undisputed material fact that Plaintiff is precluded from presenting any argument or evidence for personal injuries or lost wages in this action. As such, Defendants contend Plaintiff cannot prove causation or damage, which are requisite elements of her sole cause of action for professional negligence. Additionally, in their Reply, Defendants argue Plaintiff failed to file and serve a separate statement in opposition to Defendants’ Motion pursuant to Code of Civil Procedure section 437c, which is grounds to grant Defendants’ motion as set forth in section 437c, subdivision (b)(3).

There are no triable issues of fact and Defendants met their burden to show there is no evidence to support Plaintiff’s claim that she suffered any actual loss or damage due to Defendants’ negligence. It is an undisputed fact that on July 22, 2025, the court ruled that Plaintiff is precluded from presenting any argument or evidence for personal injuries in this action including medical records or evidence for loss of wages or loss of earning in this action. (UMFs #4-5). Accordingly, Defendants met their burden of proof of demonstrating no triable issue as to any actual loss or damage resulting from Defendants’ professional's negligence. The burden then shifts to the Plaintiff to produce admissible evidence showing a triable issue of material facts exists. Plaintiff does not oppose the motion, and thus has failed to meet the shifted burden. Therefore, Defendants’ motion for summary judgment is granted.

Dated: April 27, 2026

Judge Kory Mathewson